

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE CHEYENNE UNIFIED DEVELOPMENT CODE (UDC), AS APPROVED BY ORDINANCE NO. 3943 ON JANUARY 23, 2012, TO ADOPT AMENDMENTS IDENTIFIED AS ELECTION SIGN AMENDMENTS FROM THE 2013 ANNUAL REVIEW.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That on December 5, 2011, the Cheyenne Planning Commission unanimously recommended approval of the “Cheyenne Unified Development Code”.

Section 2. That on January 23, 2012, the Governing Body of the City of Cheyenne unanimously approved the Unified Development Code (Ordinance No. 3943) with an effective date of April 30, 2012.

Section 3. That on February 19, 2013, the City of Cheyenne Planning Commission held a public hearing to satisfy the Unified Development Code Annual Review Requirement (ref. UDC 1.1.7).

Section 4. That on October 21, 2013, the Cheyenne Planning Commission recommended approval of the amendments, referred to as Election Sign Fixes.

Section 5. That UDC “Table 6-15: Residential District Sign Allowances” is amended as follows:

TABLE 6-15: RESIDENTIAL DISTRICT SIGN ALLOWANCES	
Temporary Signs	- Up to 2 per lot, <u>except for election signs.</u> - No single sign shall be more than 6 square feet - Lots larger than 1 acre, or with more than 150' of street frontage <u>or frontage along an arterial street</u> may have up to 4 signs, and may exceed the area requirements provided the total area of all temporary signs does not exceed 24 square feet, and no more than 16 square feet per single sign, <u>except election signs have no quantity or area limitations.</u> - Signs may be placed up to 10 days prior to and following the event or distinct time period addressed by the sign, <u>except election signs have no pre-election limit.</u>
Neighborhood / District Identification Signs	- Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. - No sign or structure supporting the sign shall exceed a height of 6'.
Other Signs	1 Building Sign, Ground Sign, or Pedestrian Sign is allowed for each street frontage where any non-residential use is approved as a permitted, administrative, or conditional use within the zoning district. These other signs shall be limited as follows: - No more than 8 square feet and a height of 8' for residential dwelling building types. - No more than 48 square feet and a height of 8' for non-residential or mixed-use building types. - Any ground sign shall be setback at least 5' from the property line. - No more than 3 square feet and a height of 8' for home occupations.

Section 6. That UDC “Table 6-16: Non-Residential District Sign Allowances” is amended as follows:

TABLE 6-16: NON-RESIDENTIAL DISTRICT SIGN ALLOWANCES	
Temporary Signs	- Up to 2 per lot, <u>except for election signs.</u> - No single sign shall be more than 32 square feet. - Signs may be placed up to 45 days prior to and 10 days following the event or distinct time period addressed by the sign, <u>except election signs have no pre-election time limit.</u>
Building Signs	- Wall Signs up to 20% of the wall area, but no more than 400 square feet total. The NB, MUR, and MUB districts shall count only 10% of the street facing walls up to the height of 20' in calculating the Wall Sign allowance. Only one Wall Sign per each 50' of building frontage is permitted in the CBD. 1 Projecting Sign per street frontage, projecting no more than 5' from the surface, and no greater than 32' in area. Projecting Signs shall have a clearance of at least 10', and shall project no higher than the highest point of the building.
Ground Signs	1 Freestanding or Low-profile Sign per street frontage or building complex. The height and area of Freestanding Ground Signs shall be based on Table 6-17. The area shall be limited to 8 square feet for each 25' of lot frontage up to a maximum of 80 square feet. - Incidental signs may be provided at 12 square feet per acre, and no more than 6 square feet per sign.
Pedestrian Signs	Awning Signs / Canopy Signs provided the awning or canopy provides at least 8' clearance and the sign is limited to 3

	square feet per linear foot of awning or canopy. • Hanging Signs shall be allowed one per every 50 linear feet of building frontage, or one for every building entrance, whichever is greater. Hanging Signs shall not exceed 12 square feet in area. • Window Signs shall be allowed in any street-level window. Window signs shall not exceed more than 25% of the window area between 2' and 8' above grade.
Neighborhood / District Identification Signs	• Up to 2 per each street intersection with an arterial street and no more than 32 square feet for each sign. The area allowance for each arterial intersection may be allocated to more frequent signs at smaller intersections within the neighborhood. • No sign or structure supporting the sign shall exceed a height of 6'.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:

CAROL INTLEKOFER, CITY CLERK

publish date: